



Notification Waiver Determination

Sandvik – Diemme Filtration S.r.l.

Acquisition	Sandvik SRP AB (Sandvik) applied for a notification waiver in respect of its proposed acquisition of 100% of the share capital in Diemme Filtration S.r.l. (Diemme), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	16 July 2026

Parties to the Acquisition	The acquirer, Sandvik, is a company incorporated in Sweden which develops, manufactures and sells machinery and systems for the crushing and screening of rock and minerals, primarily serving the mining, infrastructure and construction sectors. Sandvik's operations form part of a broader mechanical engineering business and encompass product design, production, and global commercialisation, as well as the provision of related aftermarket services and technical support. The target, Diemme, is a company incorporated in Italy which designs, engineers, manufactures, markets and installs customised filter presses, filtration and thickening equipment and systems for solid-liquid separation, and which designs equipment for the conversion of waste sludge into biodegradable and organic plastics. Diemme is active in a range of industries, including mining & metals, biofuels, chemicals, and water treatment. Both parties are active in the supply of mining equipment in Australia. However, the application states that they supply different types of equipment which perform distinct functions at different stages of the mineral processing operation.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no horizontal overlap or vertical relationship between Sandvik and Diemme in Australia b. there are alternative suppliers of the types of mining equipment supplied by each of the parties in Australia

	c. there is a low risk of foreclosure or other concerning conglomerate effects resulting from exclusionary conduct, bundling or tying of products and services post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act